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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWANFORBI,
Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,
Defendants.

Case No.: 2:26-cv-02847-DAD-CKD

NOTICE OF DEFENDANT UNITED PARCEL SERVICE, INC.'S 12(b)(6) MOTION TO DISMISS

Date: October 05, 2026
Time: 1:30 PM
Courtroom: 4

Action Filed: July 15, 2026
Removal Filed: August 20, 2026

TO THE HONORABLE COURT AND THE PLAINTIFF.

Please take notice that on October 05, 2026, or as soon thereafter as this matter may be heard in Courtroom 4 of the above-entitled Court, located at 501 I Street, Sacramento, CA 95814, Defendant United Parcel Service, Inc. ("UPS"), by and through its attorneys, moves this Court to dismiss the Complaint ("Complaint") of Plaintiff for failure to state a claim pursuant to Federal Rule of Civil Procedure 12(b)(6).

Defense counsel hereby certifies that it has complied with the Meet and Confer Requirement pursuant to the Standing Order of the Honorable Dale A. Drozd. On August 26, 2026 at approximately 1:30pm counsel for UPS Alyssa R. Daskas contacted Plaintiff by telephone. At that time, Counsel Daskas informed Plaintiff of UPS's intent to file a Motion to Dismiss his Complaint and explained the basis of doing so. Plaintiff informed Counsel Daskas that he is opposing the Motion.

DATE: August 26, 2026

MARTENSON, HASBROUCK & SIMON LLP

By: */s/ Vanessa W. Mott*
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United Parcel Service, Inc.